FROM THE

EDITOR-IN-CHIEF

Unlike the previous two general elections, the seven-phase, 44-day-long 2024 general election has not had one overarching narrative. There have been a smattering of themes, but none that gained dominating traction. The one that finally did, somewhat inadvertently, is the matter of reservations. It all started with Prime Minister Narendra Modi announcing that the National Democratic Alliance (NDA) would go "*char sau paar*" this time. After all, he was riding on a grand narrative. His party also neutralised the caste reservation threat by co-opting the JD(U) patriarch and Bihar chief minister Nitish Kumar, who was the architect of the caste reservation issue. There was also the recent inauguration of the Ram temple in Ayodhya, signalling a renewed consecration of Hindutva. Mixed with that was the ambitious and attractive idea of Viksit Bharat. There was little to dampen the ruling party's optimism. But it didn't quite pan out that way.

What brought reservation back centre stage was a minor event in Karnataka: just before poll dates were announced, BJP MP Anantkumar Hegde, on the campaign trail, said getting 400-plus seats was a necessity for the NDA because "the Constitution has to be amended...it cannot be done without a two-thirds majority. Our Constitution was amended earlier to oppress the Hindu religion". The Opposition picked up his remark and amplified it, saying it exposed the real intent of the BJP, which was to amend the Constitution and usher in a Hindutva nation in which all caste-based reservations would be abolished. This included the 50 per cent reservation permitted for government jobs and educational institutions for the Scheduled Castes (SCs), Scheduled Tribes (STs) and Other Backward Classes (OBCs).



May 15, 2006

Reservation, for these caste groups, is as precious as land is for farmers, and the Opposition narrative gained traction, especially among the Dalits who have an emotional connection with the author of the Constitution, Babasaheb Ambedkar. It also brought to the fore the long-felt demand by the OBCs for a reservation policy that would do justice to the size of their population. Under the Constitution, the SC/ST segments have been awarded 15 per cent and 7.5 per cent reservation, respectively, more or less equivalent to their population ratio. The OBCs, despite their population being estimated at over 51 per cent when the last national caste census was done in 1931, were given 27 per cent to keep the overall quota within a 50 per cent limit. The OBC demand for quota justice grew urgent after Nitish's administration released the findings of a state-level caste survey in October 2023 that confirmed a widely held surmise: the OBCs constituted 63.14 per cent of the state's population. Subsequently, the Nitish government passed two amendments raising the state's caste-based quotas from 50 per cent to 65 per cent. This aligned Bihar with states like Tamil Nadu, where reservations exceed the 50 per cent ceiling reinforced by the Supreme Court in 1992. Because it was in breach of that ceiling, on November 22, 2023, Bihar requested the Centre to include the two amended laws in the Ninth Schedule of the Constitution to shield them from judicial review—the same protection that Tamil Nadu's 69 per cent quota has enjoyed since 1994. So far, the Centre has yet to respond.

Meanwhile, other states had picked up the baton from Nitish by either conducting, promising or contemplating a similar survey—Odisha, Karnataka, Telangana and Maharashtra. There is also a snowballing effect when it comes to reservations. For instance, Maharashtra, already roiled by the split in two of its big regional parties, saw the gathering storm clouds create a new point of aggravation over reservation—a demand from the Marathas to be included in the OBC list, and a counter-mobilisation of OBCs. As the voices everywhere grew louder and coalesced into a chorus, the demand for a national caste census began to become a sharply identifiable line. The Congress, which had been moving towards a 'Mandal Plus' line of late, adopted the caste census as its main campaign plank. It said that once India's OBC numbers were known, along with socio-economic data on which section had how much wealth, it would help initiate a more well-targeted endeavour at social justice and affirmative action. Standing in the company of two Mandal legatee parties in the INDIA bloc, the Rashtriya Janata Dal and the Samajwadi Party, the Congress also promised to abolish the 50 per cent judicial ceiling on reservations.

It was at this point that the BJP went into urgent damage control mode. With PM Modi leading a supercharged counterattack, it sought to rebrew the rhetoric with religion, confounding the narrative by invoking the Muslim spectre and reviving the old charge of appeasement politics against the Congress. The BJP worked on a twin strategy. First, it linked the Congress manifesto and Rahul Gandhi's theme of wealth redistribution to a Muslim-first policy. The prime minister decried Rahul's promised "X-ray of India" as a step towards grabbing all assets and rights—from the "*mangalsutra*" of Hindu women to existing caste quotas—and parcel it out to Muslims. Second, the past actions of a few Congress-led state governments, which had pushed for Muslim reservations, helped establish a pattern of conduct. As Exhibit A, they pulled out a 2006 statement by the then prime minister Dr Manmohan Singh, claiming he had said, "Muslims had the first claim on the country's resources".

On its part, the Congress charged the BJP with "distorting" Manmohan's statement and trying to polarise the electorate along communal lines. But reservations for Muslim backwards, an old but often contested part of the quota landscape, became an intrinsic part of the superheated debate. While the Constitution does not permit reservations based on religion, it does not debar quota inclusion on a socio-economic basis for caste groups, including among Muslims, if they are deemed to be backward. Many states, including BJP-ruled ones, have recognised certain backward Muslim communities and awarded them OBC quotas. Some states like Telangana, Karnataka and Andhra Pradesh have advocated that Muslims be given a separate quota, but the Supreme Court has often struck down their efforts for violating the 50 per cent limit. For our cover story this week, Managing Editor Sunil Menon takes you through this complex and acrimonious political battle over reservations and its impact on the outcome of the general election. In this sea of narratives and counter-narratives, which one makes the difference in the end will be known only on June 4.



(Aroon Purie)